

such infants "the whole or any part of the income to which such infant might be entitled in respect of such property;" and it was held in *Re George (e)*, that this power did not extend to the case of a contingent pecuniary legacy not carrying interest until the time of payment. In this [*584] state of the law, the Conveyancing * and Law of Property Act, 1881, was passed, and sect. 43 omitted the words "to which such infant might be entitled in respect of such property," but notwithstanding the variation in the language of the late Act, it has been held by the Court of Appeal affirming Kay, J., that the section does not apply to the case of a pecuniary legacy given to an infant contingently on his attaining twenty-one, followed by a residuary gift. In L. J. Cotton's opinion, there is in such a case no property held in trust for an infant within the meaning of the section until the time arises for severing the legacy from the residue, *i.e.*, until the infant attains twenty-one; while in L. J. Fry's opinion, the gift of residue which, independently of the section, carries the income accruing during the minority to the residuary legatee is a sufficient expression of a contrary expression within sub-sect. (3), to take the case out of the Act (a).

29. **Where property held for an infant for life.**—The section of the late Act gives rise to this further difficulty; the power applies to the case of "property held in trust for an infant for life," but the surplus accumulations are to be held "for the benefit of the person who ultimately becomes entitled to the *property* from which the same arise." It is difficult without construing the word "property" in different senses in the same section to attach any other meaning to these words than that the accumulations are to be added to and go with the corpus of the property, and it is conceived that this is the result of the clause, although its effect is to deprive an infant, who has an absolute life interest, of the income accrued during his minority, and not required for his maintenance. The difficulty no doubt arose from the

[(e) 5 Ch. D. 837.]

331; but see *Re Judkin's Trust*, 25

[(a) *Re Dickson*, 28 Ch. D. 291, Ch. D. 743.]

297; affirmed on appeal, 29 Ch. Div.